NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/01/2021

Coram:
Hon'ble Shri H. V. Subba Rao, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 21.06.2021

Name of the Company:
Zonet Cable TV Pvt. Ltd.
And
Zonet TV Pvt. Ltd.

Section of the Companies Act: Under Section 230-232 of Companies Act, 2013

S. NO. NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
Mr D. N. Sharma	Advocate	Petitioner	Through
Mr B. Debnath	CS		Video
Mr Saroj Kr. Ray	CS		Conference

O R D E R
Date of Order: 21st June 2021

The matter is taken up through Video Conferencing. Heard the learned Counsels appearing on behalf of the Petitioner Companies.

2. This Company Petition being **CP(CAA)/01/2021** filed by Zonet Cable TV Private Limited (ZCTPL) the Demerged Company and Zonet TV Private Limited (ZTPL), the Resulting Company came up for admission and for fixing a date of hearing of the Company Petition as well as for direction in relation to publication of notice in newspapers for sanction of Scheme of Arrangement of the Petitioners, Zonet Cable TV Private Limited (ZCTPL) and Zonet TV Private Limited (ZTPL) and their respective shareholders.

3. That pursuant to the order dated 23rd February, 2021, passed by this Tribunal in **CA (CAA)/05/2021**, convening the meetings of equity shareholders, of the petitioner companies were dispensed with in view of the individual affidavit given by all of the Equity Shareholders of Zonet Cable TV Private Limited (ZCTPL) the Demerged Company and Zonet TV Private Limited (ZTPL) the Resulting Company.

4. That pursuant to the order dated 23rd February, 2021, passed by this Tribunal in **CA (CAA)/05/2021**, convening the meeting of the only Secured Creditor was dispensed with in view of the individual affidavit given by the Secured Creditors of Zonet Cable TV Private Limited (ZCTPL) the Demerged Company.

5. That pursuant to the order dated 23rd February, 2021, passed by this Tribunal in **CA (CAA)/05/2021**, convening the meetings of the Unsecured Creditors were dispensed with in view of the individual affidavits given by all of the unsecured Creditors of Zonet Cable TV Private Limited (ZCTPL) the Demerged Company and Zonet TV Private Limited (ZTPL) the Resulting Company.

6. That an Affidavit of Service/Compliance with respect to the notice to Government Authorities and Regulatory Authorities under Section 230(5) of the Act, has been filed with this Tribunal on 12th March, 2021.

7. That after such compliance, the Petitioner has filed the instant petition, being **CP (CAA)/01/2021** before this Tribunal, seeking final sanction to the proposed Scheme of Arrangement for orders facilitating and giving effect to the same.

8. That the Regional Director, North East Region, Guwhati has submitted the no objection of the proposed scheme vide his affidavit dated 17th June, 2021.

9. Upon hearing, the following orders are passed:

O R D E R

(i) The petition is hereby admitted.

(ii) That the advertisement of the hearing of this petition be published once in the English newspaper **"MIZORAM POST"** and once in the newspaper **"VANGLAINI"** of vernacular language having wide circulation in the district where the Registered Office of the Petitioner Companies are situated, further the Petitioners are directed to publish the advertisement of the hearing of this petition once in the English newspaper **"THE SENTINEL"** having wide circulation in the State of Assam stating the PAN number of the Petitioners, at least 10 days before the date fixed for hearing in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in Form No. NCLT 3A.

(iii) The Petitioner shall file an affidavit at least seven days before the date fixed for hearing of the petition as regards to the publication of advertisement of the notice in newspapers.

(iv) The petition is fixed for final hearing on **20th July, 2021**.

(v) Certified copy of the order may be issued, if applied for, upon compliance with all the requisite formalities.

Sd/-
(**Prasanta Kumar Mohanty)**
Member (Technical)

Sd/-
(H.V. Subba Rao)
Member (Judicial)

//Deka= 21.06.2021//